

Request to attend by electronic communication

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULES 15.16, 15.17, 15.18

Please type or print clearly and mark [X] all boxes that apply. Attach extra pages if you need more space to answer any question/s.

Filed in:

- ☐ Federal Circuit and Family Court of Australia (Division 1)
☒ Federal Circuit and Family Court of Australia (Division 2)
☐ Other (specify) _____

This form may be used to seek permission to use electronic communication to attend; adduce evidence of a party or witness, or make a submission to the Court.

File number MLC11978/2023

Filed at

Filed on

Court location

Court date

Time _____

Note: This request must be received by the Court at least 5 business days before the date fixed for the court event to which it relates, but at least 28 days before if it is for a final hearing. Before making this request you must advise the other party and seek their agreement to your proposal to attend/make a submission/adduce evidence by electronic communication.

The request will be decided by a Judicial Officer on the documents filed.

Part A About the parties

1 APPLICANT 1

Family name as used now

morgan

Given names

viviane

APPLICANT 2

Family name as used now

Given names

2 Independent children's lawyer family name

RESPONDENT 1

Family name as used now

reade

Given names

matthew

RESPONDENT 2

Family name as used now

morgan

Given names

jacqueline

Given names

Part B About the party requesting permission

3 Family name as used now

morgan

Given names

john

4 What is your contact address (address for service) in Australia?

29 towie st cloverdale

State wa

Postcode 6105

Phone 0421634872

If represented, lawyer's ID

Email jmorganink@gmail.com

Part C About the case

5

- ☐ Initiating Application
☒ Application in a Proceeding
☐ Appeal
☐ Other (specify) _____

Date of filing of application or notice of appeal

6//062025/

Part D Details

6 Court event to which request relates

- ☐ Procedural hearing (e.g. directions/mention/compliance)
☐ Interim hearing
☐ Dispute resolution event (e.g. conciliation conference, FDR, arbitration)
☒ Final hearing (trial)

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Date of Court event

04/07/2025

Purpose for which permission is sought and details of who seeks permission

☒ Attend

- ☒ Applicant
☐ Respondent
☐ Other – Details _____

☐ Make a submission

- | | | |
|--------------------------------------|---|--------|
| ☐ Applicant | ☐ Applicant Lawyer | _____ |
| | | (Name) |
| ☐ Respondent | ☐ Respondent Lawyer | _____ |
| | | (Name) |
| ☐ Other Party | ☐ Other Party's Lawyer | _____ |
| | | (Name) |

☒ Party to give evidence

- ☒ Applicant
☐ Respondent
☐ Other – Details _____

☐ Adduce evidence from witness (full name)

Date affidavit filed

/ /

State the reasons why you are seeking to use electronic communication (give a number to each reason)

9

1. my mother needs my assistance to provide proper argument case for seeking visitation from her grand daughter mia

2 i am her uncle John Morgan and i was also there from the beginning raising mia and i would like to introduce my niece to my kids once day

3 it has come to my attention that mia has been sick for so long, but when she was in our care she was perfectly healthy, and my mum warned the department of child protection that her father wouldnt care for his daughters well being as much as her grand mother would. We are seeking permission from court to take Mia to our family doctor and get a full report on her mental health and her conditons and what part can my mother do to help mias quality of life improve and be a normal

kid

5 to interpret for her as her english isnt good and she doesnt have a legal representative on that daY, So i will me representing my mother that day

10

Type of electronic communication sought to be used

☒

Telephone

☒

Video conference

☐

Other (please specify)

11

Contact name and number for the party on the court date, noting a directly number may be required. Switch board or a general office number may not be acceptable.

Name: viviane morgan

Number: 0432415099

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Set out your proposed arrangements for the attendance (if the attendance is to make a submission or to adduce or give evidence, include the place from which the attendance will take place, the facilities available at that place, details of the witness and their evidence, and the expense of the attendance: see Rule 15.16).

(

e.g. The Applicant Wife will be in her solicitor's office. The Applicant Wife's solicitors will connect to the electronic hearing at the relevant time, if this application is granted. The computer facilities will be on loudspeaker so both the wife and her solicitor can hear everything that is said and may speak when called upon).

i would like a video conference booked on that day and have a screen or a laptop connect so i can be present on that day by having one of the court assistance booking a meeting conference at 10am on 4th of july

Part E Other party/ies response to this request

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On 6/6/2025 I advised the other party/s of my intention to make this request. The other party agrees to my attending/adducing evidence/making a submission by electronic communication

☒

Yes

☒

No

☐

Attached is a copy of the letter I have received from the other party in response to this request

Part F Acknowledgment and signature

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I acknowledge that I am responsible for the cost of the electronic communication unless the Court orders otherwise.

I understand that my attendance at Court is required if this request is not approved.

Signed

Date

John Morgan

24/06/2025

If no response has been received and this request is made less than five (5) working days after advising the other party (or 28 days prior to a trial), reasons should be provided in the “Details of Request” section as to why the application should be considered at this time.

Court use only

Attendance by the applicant/respondent at the event listed is approved/not approved.

Party advised by telephone/letter/email on / /

Signature

Date

 / /

0625V1